

How to do a Consent Order

Instructions

If you and the other person have come to an agreement on all of your family law issues, you can do a Consent Order. You can use this **Consent Order** template to draft the consent order between you and the other person.

By signing a Consent Order, you acknowledge that the terms of the Order will be enforced. Before you sign a Consent Order, both you and the other person should get advice from separate lawyers.

You can only file a Consent Order if you already have an **Originating Application (Form F4.03A)**, **Originating Application for Variation (Form F5.05A)**, **Joint Originating Application (Form F4.04A)**, or **Joint Originating Application for Variation (Form F5.06A)** filed with the Court. If you do not one of those documents filed with the Court, you must complete one and file it at the same time as your Consent Order.

If there are any issues that you and the other person do not agree on, you must set out these issues in an **Originating Application (Form F4.03A)** or **Originating Application for Variation (Form F5.05A)**. You can still do a Consent Order on the issues you agree on.

Completing Your Consent Order

You can fill out this form by hand or you can download and fill out this form electronically at www.court.nl.ca/supreme/family/forms.html (If you fill out the form electronically, you must still print the form and file it with the Court).

Check off “Final Order on Consent” (on the first page) if you are consenting to a final order. Check off “Interim Order on Consent” (on the first page) if you are consenting to an interim order.

Consent orders dealing with child, spousal, partner, parental, or dependant support, must be separated from other types of orders. If you are consenting to support, fill out an **Consent Order – Support**. For all other Consent orders (eg. parenting or property), fill out this **Consent Order – Other than Support**.

If you need more space to fill out any section of this form, attach an extra page and indicate which section is continued on the extra page.

Filing Your Consent Order

You must make **2 extra copies** of your completed and signed Consent Order. To file it, you must bring the original Consent Order to the same Court location where the Originating Application, Originating Application for Variation, Joint Originating Application, or Joint Originating Application for Variation was filed. You can also mail the Consent Order to that Supreme Court location.

More Information

Questions? Go to www.court.nl.ca/supreme/family or contact a Court near you:

Corner Brook: (709) 637-2227

Gander: (709) 256-1115

Grand Bank: (709) 832-1720

Grand Falls-Windsor: (709) 292-4260

Happy Valley-Goose Bay: (709) 896-7892

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding or getting a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE FILING THE ORDER ---

F34.02B: Consent Order – Other than Support (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20_____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____
(Print full name)

- ☐ APPLICANT
☐ CO-APPLICANT

AND: _____
(Print full name)

- ☐ RESPONDENT
☐ CO-APPLICANT

AND: _____
(Print full name)

- ☐ NOT APPLICABLE
☐ SECOND APPLICANT
☐ SECOND RESPONDENT
☐ CO-APPLICANT

BEFORE the Honourable Justice _____, on _____
(Print Name) (Date: month/day/year)

- ☐ Final Order on Consent ☐ Interim Order on Consent

IT IS ORDERED THAT under the:

- ☐ Family Law Act (Newfoundland and Labrador):
☐ Divorce Act (Canada):
☐ Children's Law Act (Newfoundland and Labrador):
☐ _____

Decision-Making

☐
One parent makes all the decisions (Sole Decision-Making)

The parties agree that _____

shall make all of the major decisions regarding the following children: *(Name(s) and date(s) of birth of children)*

Other details (decision-making and information):

OR

☐
Both parents make the decisions together (Joint Decision-Making)

The parties agree that _____

shall make all of the major decisions jointly for the following children: *(Name(s) and dates(s) of birth of children)*

OR

☐
Other (Qualified Joint Decision-Making)

The parties agree that _____

shall make the decisions for the following children: *(Name(s) and dates(s) of birth of children)*

as follows:

Parenting Time

The parties agree that there shall be:

- ☐ Shared parenting. *(Fill in the details of your arrangement below)*
- ☐ Primary residence with *(name)* _____ and parenting time arrangements. *(Fill in the details of your arrangement below)*
- ☐ Primary residence with *(name)* _____ and no parenting time.
- ☐ Split parenting. *(Fill in the details of your arrangement below)*

Details:

Regular parenting schedule (daily, weekly, monthly or other):

--

Parenting schedule for holidays and special occasions:

--

Schedule for other communication (ie. phone, internet, etc.):

--

Other important issues in relation to parenting the child(ren)

--

Contact Order / Third Party Time with Child

The parties agree that _____ (name of person) should have contact with the child(ren). Fill in the details of your arrangement below:

Details:

Division of Property

The parties agree that there shall be:

- ☐ Equal division of matrimonial property. *(Fill in the details of your arrangement below)*
- ☐ Unequal division of matrimonial property. *(Fill in the details of your arrangement below)*
- ☐ Division of common law property. *(Fill in the details of your arrangement below)*
- ☐ Property arrangement. *(Fill in the details of your arrangement below)*

Details:

Other

If you are consenting to something other than the orders provided for in this Form, fill in the details below:

Consent Signatures (if applicable)

If applicable, both parties must sign the Consent Order in front of a commissioner of oaths, notary public, justice of the peace, or lawyer. Court Registry staff are commissioners of oaths and you may sign this Consent Order at the Court when you file it.

Applicant (or Co-Applicant)

DATE (month/day/year): _____
Signature of Applicant (or Co-Applicant)
Address of Applicant (or Co-Applicant)
Signature of Person Authorized to Administer Oaths

Respondent (or Co-Applicant)

DATE (month/day/year): _____
Signature of Respondent (or Co-Applicant)
Address of Respondent (or Co-Applicant)
Signature of Person Authorized to Administer Oaths

Applicant's (or Co-Applicant's) Lawyer (if any)

DATE (month/day/year): _____
Signature of Lawyer
Print name of Lawyer

Respondent's (or Co-Applicant's) Lawyer (if any)

DATE (month/day/year): _____
Signature of Lawyer
Print name of Lawyer

Order Issued at:**FOR COURT USE ONLY**

Location: Supreme Court in _____, Newfoundland and Labrador

Date: _____

Justice or Registry Clerk of the Supreme Court of Newfoundland and Labrador